

Unofficial Translation

This document is an **automatic translation** generated by an artificial intelligence (Le Chat, Mistral AI).

It is **not an official translation** and has **no legal validity**.

For any interpretation or application, refer **only to the original French text** or to a certified translation by a professional.

Traduction non officielle

Ce document est une traduction **automatique** réalisée par une intelligence artificielle (Le Chat, Mistral AI).

Il ne s'agit **pas d'une traduction officielle** et n'a **aucune valeur juridique**.

Pour toute interprétation ou application, se référer **uniquement au texte original en français** ou à une traduction certifiée par un professionnel.

Amendment No. 10 to the Collective Bargaining Agreement for the Domestic Employment Sector and Home-Based Work

PREAMBLE – PURPOSE OF THE AMENDMENT

The inter-sectoral framework agreement of November 24, 2016, concerning the rules for organizing and choosing the occupational health service, individual and collective monitoring, and the prevention of health deterioration for workers—inserted as Annex 1 to the collective bargaining agreement for the domestic employment sector and home-based work—sets out in its Article 5.2.2 the rules relating to **unfitness for work**.

Through this amendment, the social partners wish to clarify the consequences of a **medical declaration of unfitness** issued against an employee covered by the scope of this collective bargaining agreement.

This amendment modifies certain provisions of the collective bargaining agreement for the domestic employment sector and home-based work accordingly.

HAVING SET FORTH THE ABOVE, THE FOLLOWING HAS BEEN AGREED:

Article 1. Scope of Application

This amendment applies to all private employers and employees covered by the professional and geographical scope of the collective bargaining agreement for the domestic employment sector and home-based work of March 15, 2021, regardless of the mode of employment (direct employment or intermediary employment).

It is also emphasized that the specificity of the activities covered—and particularly the exclusion of any company from its scope—makes the collective bargaining agreement for the domestic employment sector and home-based work unique. Therefore, the provisions of **Article L.2261-23-1 of the French Labor Code**, relating to companies with fewer than fifty employees, do not apply to this amendment.

Article 2. Amendments to the Common Core of the Collective Bargaining Agreement

Article 2.1 – Amendments to Article 63 "Other Terminations of the Employment Contract"

Article 63.4 is deleted and replaced by a new **Article 63.4** titled "**Termination of the Employment Contract Due to Unfitness for Work**":

Following a medical examination, the occupational health physician may declare the employee unfit to perform their job.

The **unfitness declaration** issued by the occupational health physician is supported by written conclusions, including indications for possible redeployment, in compliance with the legal and regulatory provisions of common law.

This declaration is sent to both the employee and the private employer by any means that provides a certain date.

The appeal procedures and deadlines for action are indicated on the declarations and measures issued by the occupational health physician.

Since the private employer is **unable to redeploy the employee to another position** (other than the one for which they were hired and which they are declared unfit to perform), they proceed with the termination of the employee's contract according to the procedures specified in each of the specific frameworks.

From the date of the **final unfitness declaration**, regardless of its cause, the employee is informed of their right to **additional funding for their Personal Training Account (CPF)** and the portability of this account in the event of contract termination due to unfitness.

A new **Article 63.5** is inserted:

"Article 63.5 – Other Terminations of the Employment Contract"

Other terminations of the employment contract are specified in each of the specific frameworks.

Article 2.2 – Amendments to Article 64 "Notice Period"

A new **Article 64-4** is inserted:

"Article 64-4 – No Notice Period in Case of Employee Unfitness"

In the event of contract termination due to unfitness, the termination date is set as the date on which the private employer sends the notification of contract termination.

Article 3. Amendments to the Childcare Assistant Framework of the Collective Bargaining Agreement

Article 3.1 – Amendments to Article 93 "Mutual Commitment"

In the fifth paragraph:

"It is not due, upon presentation of proof, if the following events occur between the date of mutual commitment and the effective date of hiring:"

A third bullet point is added:

- **"The unfitness of the childcare assistant, as declared by an occupational health physician."**

Article 3.2 – Amendments to Article 119 "Terminations of Open-Ended Employment Contracts"

A new **Article 119-5** is inserted:

"Article 119-5 – Termination of the Employment Contract Due to Unfitness"

A **final unfitness declaration** for a childcare assistant, issued by an occupational health physician, is binding on both parties and results in the termination of the employment contract due to unfitness, in accordance with the procedure set out in **Article 119-1** of this specific framework.

Once the **final unfitness declaration** is issued by the occupational health physician, the childcare assistant must inform the **President of the Departmental Council** of their unfitness status to discuss the **maintenance or modification of their approval**, given the specific nature of the childcare assistant profession and the rules governing approval.

The private employer must notify the childcare assistant of the contract termination **by registered letter with acknowledgment of receipt or by hand-delivered letter against discharge**, within **one month** of receiving the final unfitness declaration from the occupational health physician. This is due to the private employer's inability to redeploy the childcare assistant to another position (other than the one for which they were hired and which they are declared unfit to perform).

If the private employer **fails to act within this one-month period**, they must resume payment of the childcare assistant's salary (excluding allowances) under the terms specified in the employment contract.

In the event of contract termination due to unfitness, the contract is terminated **without notice**, in accordance with **Article 64-4** of this collective bargaining agreement.

- If the unfitness results from a **non-occupational illness or accident**, the private employer pays a **termination indemnity** under the conditions and terms defined in **Article 121-1** of this specific framework.

- If the unfitness is due to a **work-related accident or occupational disease**, the private employer pays the childcare assistant a **specific termination indemnity** based on the seniority conditions defined in **Article 121-1** of this specific framework. The amount of this specific indemnity is equal to **two-ninetieths (2/90) of the total gross salaries** received during the contract, excluding non-contributory allowances (such as mileage allowance, maintenance allowance, and meal expenses).

In all cases, the **compensatory leave pay** is paid to the childcare assistant under the conditions and terms set out in **Article 123** of this specific framework.

If the child was welcomed for **46 weeks or less**, the private employer must finalize the salary adjustment at the end of the contract in accordance with **Article 124** of this specific framework.

Article 4. Amendments to the Private Employer's Employee Framework of the Collective Bargaining Agreement

Article 4.1 – Amendments to Article 161-1 "Termination of the Employment Contract at the Initiative of the Private Employer"

A new **Article 161-1-3** is inserted:

"Article 161-1-3 – Employee Unfitness"

Due to the private employer's **inability to redeploy the employee to another position** (other than the one for which they were hired and which they are declared unfit to perform), the private employer proceeds with the contract termination by following the **dismissal procedure** set out in **Article 161-1-1** of this specific framework, within **one month** of receiving the final unfitness declaration from the occupational health physician.

If the private employer **fails to act within this one-month period**, they must resume payment of the employee's salary (excluding allowances) under the terms specified in the employment contract.

In the event of dismissal due to unfitness, the contract is terminated **without notice**, in accordance with **Article 64** of this collective bargaining agreement.

- If the unfitness results from a **non-occupational illness or accident**, the private employer pays a **severance indemnity** under the conditions defined in **Article 163-1** of this specific framework.
- If the unfitness is due to a **work-related accident or occupational disease**, the private employer pays the employee a **specific severance indemnity** based on the seniority conditions defined in **Article 163-1** of this specific framework. The amount of this specific indemnity is **double the severance indemnity** provided for in **Article 163-1** of this specific framework.

The **gross monthly salary** to be considered for calculating the severance indemnity (for simple or occupational unfitness) is the most advantageous of the following for the employee:

- The **average monthly gross salary** of the **last 12 months** preceding the work stoppage; or, if the seniority is less than 12 months, the average monthly gross salary for all months prior to the work stoppage.

- The **average monthly gross salary** of the **last 3 months** preceding the work stoppage.

In all cases, the **compensatory leave pay** is paid to the employee under the conditions set out in **Article 67** of the common core of this collective bargaining agreement, **except for employees declared under the CESU system**, whose hourly wage is increased to cover paid leave.

Article 5. Duration and Entry into Force

This amendment is concluded for an **indefinite period**. It is annexed to the collective bargaining agreement for the domestic employment sector and home-based work.

It enters into force on the **first day of the calendar month following the date of publication of the extension order in the Official Journal (Journal Officiel)**.

Article 6. Notification, Filing, and Extension

In accordance with the provisions of **Article L.2231-5 of the French Labor Code**, this agreement is notified by **registered letter with acknowledgment of receipt** to all representative organizations upon completion of the signing procedure.

This agreement is drawn up in as many copies as necessary for filing under the conditions provided for in **Articles L.2231-6 and D.2231-2 et seq. of the French Labor Code**.

The signatory parties agree to request the **extension of the agreement**. The extension will be requested at the initiative of the most diligent party.

Article 7. Revision and Denunciation

This amendment may be denounced under the conditions set out in **Articles 5 and 6** of the collective bargaining agreement for the domestic employment sector and home-based work.

Signed in Paris, on September 9, 2025

Signatories:

- The Federation of Private Employers of France (FEPEM)
- The CFDT Services Federation
- The CGT Federation of Commerce, Services, and Distribution
- The Confederation of Employees of Private Employers, Family Assistants, and Childcare Assistants (C.S.A.F.A.M)
- The General Confederation of Workers in Agriculture, Food, Tobacco, and Related Activities – Force Ouvrière (F.G.T.A./F.O.)

- The Professional Union of Childcare Assistants and Family Assistants (S.P.A.M.A.F)
- The National Union of Autonomous Trade Unions – U.N.S.A. (F.E.S.S.A.D)